

1
2
3
4
5
6
7
8
9
0
1
2
3
4
5
6
7
8
9
0
1
2
3
4

April 23, 2025

ENGROSSED HOUSE
BILL NO. 1512

By: Tedford and Hill of the
House

and

Paxton of the Senate

An Act relating to insurance; granting the Oklahoma Insurance Commissioner certain authority related to the Patient Protection and Affordable Care Act; providing definition; creating the State-based Exchange Revolving Fund; providing purpose of fund; providing for certain monies to be deposited to fund; providing for codification; providing an effective date; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 4606 of Title 36, unless there is created a duplication in numbering, reads as follows:

A. The Oklahoma Insurance Commissioner shall have the authority to implement, establish, create, administer, or otherwise operate an exchange, promulgate rules, and apply to the United States Secretary of Health and Human Services for a waiver pursuant to Section 1332 of the Patient Protection and Affordable Care Act (42 U.S.C., Section 18052).

1 B. "Exchange" means a state, federal, or partnership exchange
2 or marketplace operating in Oklahoma pursuant to Section 1311 of the
3 Patient Protection and Affordable Care Act.

4 SECTION 2. NEW LAW A new section of law to be codified
5 in the Oklahoma Statutes as Section 4606.1 of Title 36, unless there
6 is created a duplication in numbering, reads as follows:

7 A. There is hereby created in the State Treasury a revolving
8 fund for the Insurance Department, to be designated the "State-based
9 Exchange Revolving Fund". The fund shall be a continuing fund, not
10 subject to fiscal year limitations, and shall consist of any monies
11 deposited to the fund for the creation, implementation,
12 administration, and operation of the State-based Exchange as
13 authorized in subsection A of Section 1 of this act. All monies
14 accruing to the credit of the fund are hereby appropriated and may
15 be budgeted and expended by the Department for the creation,
16 implementation, administration, and operation of the State-based
17 Exchange. Warrants for expenditures from the revolving fund shall
18 be drawn by the State Treasurer, based on claims signed by an
19 authorized employee or employees of the Insurance Department, and
20 filed with the Director of the Office of Management and Enterprise
21 Services.

22 B. Notwithstanding any law to the contrary, all monies,
23 including but not limited to user fees, paid to or collected by the
24 Insurance Commissioner in relation to the State-based Exchange shall

1 be deposited in the State-based Exchange Revolving Fund. Monies
2 shall not lapse, unless otherwise specified under federal funding or
3 federal grant, or a grant or funds from another source, or be
4 transferred to the State Insurance Commissioner Revolving Fund or
5 other state funds and shall not be redistributed.

6 SECTION 3. This act shall become effective July 1, 2025.

7 SECTION 4. It being immediately necessary for the preservation
8 of the public peace, health or safety, an emergency is hereby
9 declared to exist, by reason whereof this act shall take effect and
10 be in full force from and after its passage and approval.

11 COMMITTEE REPORT BY: COMMITTEE ON APPROPRIATIONS
12 April 23, 2025 - DO PASS
13
14
15
16
17
18
19
20
21
22
23
24